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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

SECURITIES AND EXCHANGE COMMISSION OF PAKISTAN

NOTIFICATION

Islamabad, the 10th February, 2015

S.R.O. 119 (I)/2015.—In exercise of the powers conferred by Section 39 of the Modaraba Companies and Modaraba (Floatation & Control) Ordinance, 1980 (XXXI of 1980) (“the Ordinance”) and in supersession of S.R.O. 481(I)/2014 dated May 30, 2014, the Registrar Modaraba hereby delegates the following powers and functions under the Ordinance and the Modaraba Companies and Modaraba Rules, 1981 (“the Rules”) to the officers subordinate to him, subject to such limitations, restrictions or conditions as specified herein and as he may from time-to-time impose, namely:—

(443)

Price : Rs. 3.00

[220 (2015)/Ex. Gaz.]

**POWERS AND FUNCTIONS OF THE REGISTRAR MODARABA
DELEGATED TO DIRECTOR SUPERVISION AND ENFORCEMENT
DEPARTMENT, SPECIALIZED COMPANIES DIVISION**

S. No.	Relevant section of the Ordinance	Nature of power/functions
1	14	To call information/ documents with regard to annual audited accounts of a Modaraba.
2	34	To: (a) enforce attendance of a person and examine him on oath or affirmation; and (b) compel the discovery and production of documents.

S. No.	Relevant rule of the Rules	Nature of power/functions
1	3 (2) (f)	To lay-down, receive and examine all reports, accounts and other documents referred to in section 14 and to pass orders for and receive such additional documents or reports or information as may be considered necessary.
2	3 (3)	To: (i) Examine annual accounts and quarterly accounts received by him and return the deficient document for compliance, revision or correction. (ii) Allow a representative of the modaraba company to rectify or complete annual accounts and quarterly accounts.
3	3 (4)	To call various fees as prescribed under 2 nd Schedule to the Rules.
4	3 (5)	To issue acknowledgement of filing of annual accounts and quarterly accounts.
5	3 (6)	To maintain the annual and quarterly accounts in the manner provided under this rule.
6	3 (7)	To make endorsement on the annual and quarterly accounts, the particulars as specified under this rule and sign, and affix his official seal, to every such endorsement.

S. No.	Relevant rule of the Rules	Nature of power/functions
7	3 (8, 9 & 10)	To maintain a register of modaraba companies and a register of modarabas and to enter therein the information relating to filing of annual and quarterly accounts in the manner as specified under sub-rules 8, 9 & 10 of rule 3.
8	3 (11)	To permit members of the public to inspect such registers and annual and quarterly accounts maintained under sub-rules 8, 9 & 10 of rule 3.
9	3 (13)	To grant copies of entries in the registers and annual and quarterly accounts on payment of the prescribed fees.
10	3 (14)	To take cognizance of omission to file or register annual or quarterly accounts on due date or any other omission, lapse, irregularity or infraction of the law by or in relation to a modaraba company or modaraba.
11	3(16)	To prepare or cause to be prepared and keep a seal for the authentication of documents.
12	10	To receive the quarterly accounts of the modaraba.

**POWERS AND FUNCTIONS OF THE REGISTRAR DELEGATED TO
JOINT DIRECTOR (POLICY REGULATION AND DEVELOPMENT
DEPARTMENT, SPECIALIZED COMPANIES DIVISION**

S. No.	Relevant rule of the Rules	Nature of power/functions
1	3 (3)	To: (i) Examine all the documents except annual accounts and quarterly accounts received by him and return the deficient document for compliance, revision or correction. (ii) Allow a representative of the modaraba company to rectify or complete all the documents except annual accounts and quarterly accounts.
2	3 (4)	To call various fees as prescribed under 2 nd Schedule to the Rules.
3	3 (5)	To issue acknowledgement of filing of all the documents except annual accounts and quarterly accounts.

S. No.	Relevant rule of the Rules	Nature of power/functions
4	3 (8, 9 & 10)	To maintain a register of modaraba companies and a register of modarabas and to enter therein the filing of all the documents and returns except the annual and quarterly accounts in the manner as specified under sub-rules 8, 9 & 10 of rule 3.
5	3 (11)	To permit members of the public to inspect such registers and records except annual and quarterly accounts maintained under these rules.
6	3 (13)	To grant copies of entries in the registers and documents except annual and quarterly accounts on payment of the prescribed fees.
7	3 (16)	To prepare or cause to be prepared and keep a seal for the authentication of documents and certificates.
8	20	To accept for registration, the Prospectus of a Modaraba filed by the Modaraba Company.
9	27 & 28	To register a mortgage/charge created on the assets of a Modaraba and any modification therein and satisfaction thereof.

The powers and functions delegated to the aforesaid subordinate officers shall be exercised concurrently by the Registrar Modaraba.

[No. SC/M/PRDD/DOP/2015.]

BUSHRA ASLAM,
Secretary to the Commission.